Small Great Things

By Jodi Picoult

NOTE: This cutting asks one student to portray 2-characters, which is permissible for Nationals and SOME states. It may not meet the rules requirement for DUO in your state! Be sure to check your STATE rules before performing at local tournaments.

Suggested Roles: *Actress 1: Kennedy and Pros. Attorney*
Actress 2: Ruth

RUTH: **(Pg 323-324)** (to audience) We all do it, you know. Distract ourselves from noticing how time's passing. We throw ourselves into our jobs. We fill up our gas tanks and do the grocery shopping so that the weeks look the same on the surface. If you only see the path that's right ahead of you, you don't obsess over when the cliff might drop off. Some of us never learn. And some of us learn earlier than others. (Deep breath in through her nose, she holds it and then releases it through her mouth)

KENNEDY: **(Pg 326)** (to audience) Bad things happen to good people every day. **(Pg 195)** (to Ruth, breezily) Well, first, do you prefer the term ***black*** or ***African American*** or ***people of color***?

RUTH: (Beat) People of color.

KENNEDY: Frankly, I don't even ***see*** color. I mean, the only race that matters is the ***human*** one, right? (Ruth presses her lips tightly together)

INTRODUCTION

ACTRESS 1: *Ruth Jefferson is a labor and delivery nurse with more than 20 years' experience.*
ACTRESS 2: *During a shift, she begins a routine checkup on a newborn, only to be told a few minutes later that she's been reassigned. Why?*
ACTRESS 1 in the voice of the father, TURK BAUER: ***(Pg 21)*** *"I don't want her or anyone who looks like her touching my son!"* *(silent beat)*
ACTRESS 2: *The hospital complies and flag the baby's chart*
TOGETHER: ***(Pg 43)*** *NO AFRICAN AMERICAN PERSONNEL TO CARE FOR THIS PATIENT*
ACTRESS 1: *But the next day, the baby goes into cardiac distress while Ruth is alone in the nursery. She hesitates before performing CPR and, as a result, is charged with murder.*

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ACTRESS 2: *Kennedy McQuarrie, a white public defender, takes her case, and insists that mentioning race in the courtroom is* ***NOT*** *a winning strategy. (both shake their heads and sigh)*
ACTRESS 1: ***(Pg 464)*** *Yes, talking about racism is hard to do,*
ACTRESS 2: *And yes, we stumble over the words - but we* ***need*** *to have this discussion . . .*
ACTRESS 1: *Because then, more will overhear, and - I hope - the conversations will spread.*
TOGETHER: *Small Great Things by Jodi Picoult*

******As the trial concludes******

KENNEDY: **(Pg 392-395)** I don't think you should get on the stand.

RUTH: You promised . . . You promised I could say my piece.

KENNEDY: [The judge] threw out the murder charge. The worst-case scenario – a conviction of negligent homicide carries almost no jail time . . . and honestly our medical evidence was so strong that I'd be shocked if the jury doesn't acquit. We've created reasonable doubt. That's all we have to do to win. The jury hands back the verdict, and you go get your job back. You get to pretend this never happened.

RUTH: You think I can pretend this never happened? I see this every day, everywhere I go. You think I'm going to just walk in and get my job back? You think I'm not always going to be that black nurse who caused trouble.

KENNEDY: Ruth, I'm 99 percent sure this jury is going to find you not guilty. What more could you possibly want?

RUTH: (crosses her arms in determination) You still have to ask?

KENNEDY: (to audience) I know what she is talking about. Namely, everything I refused to talk about in court: what it is like to know that you are a target, because of the color of your skin. What it means to work hard, to be an impeccable employee, and have none of that make a difference in the face of prejudice.

RUTH: I know how the law works, Kennedy. You ***have*** to put me on the stand if I ask you to. So I suppose the question is: Are you going to do your job? Or are you going to be just one more white person who lied to me?

KENNEDY: What the hell? Now is not the time to stand on principle. If you get on the stand and start talking about race, you'll erase the lead we currently have. You'll be talking about

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issues that will alienate [the jury] and make them uncomfortable. Plus, the fact that you're upset and angry . . .

RUTH: **(Pg 407-408)** I ***am*** angry. I have been angry for years. I just didn't let it show. 365 days a year, I have to think about not looking or sounding too black, so I play a role. It's exhausting. It's so goddamned exhausting. But I do it, because I don't have bail money. I do it because I have a son. I do it because if I don't, I could lose my job. My house. Myself. So instead, I work and smile and nod and stay silent and pretend to be satisfied, because that is what you people want – no – ***need*** me to be. And the great, sad shame is that for too many years of my sorry life, I have bought into that farce. I thought if I did all those things, I could be one of you. (beat) You told me you could represent me, Kennedy. You can't represent me. You don't know me. You never even tried. (deliberate beat – then with conviction) **(Pg 395)** You are putting me on that stand tomorrow or **(Pg 408)** you're fired.

KENNEDY: (to audience) **(Pg 395)** And just like that, I know I'm going to lose this case.

****** The next day in court – Kennedy calls Ruth to the stand ******

KENNEDY: **(Pg 401-404)** When did you next see the baby?

RUTH: Saturday morning. I was in the nursery when the baby's new nurse brought him in for a circumcision. I assumed it all went normally. Then Corinne grabbed me and asked me to watch over him because another one of her patients had to be rushed to the OR. Protocol required that the baby be monitored.

KENNEDY: When you first saw the baby, how did he look?

RUTH: Beautiful . . . But a few moments later I saw that his skin was ashen. I could see he was having trouble breathing.

KENNEDY: What did you do in that instant, Ruth?

RUTH: I started tapping his feet, trying to get him to respond.

KENNEDY: When you'd been told by your supervisor to not touch that baby?

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RUTH: I had to . . . It's what any good nurse would do. But I heard footsteps. I didn't know what to do. I thought I'd get in trouble if someone saw me interacting with the baby . . . so I wrapped him up again and stepped back. Marie walked into the nursery. She asked me what I was doing. (long pause) I said I was doing nothing.

KENNEDY: You lied . . . when you were questioned by the police, you stated you did not engage in any resuscitative efforts for that baby. Why?

RUTH: I was afraid I was going to lose my job. Every fiber of my being told me I had to help that infant . . . but if I lost my job . . .

KENNEDY: So you basically faced either assisting in malpractice, or violating your supervisor's order?

RUTH: It was a lose-lose situation. The code team was called in. My job was to do compressions. I did my best, we all did, but in the end it wasn't enough. (softly at first, but with a growing bitterness) It's funny. You think you're a respected member of a community – the hospital where you work, the town where you live. But it was just an optical illusion. I was never a member of any of those communities. I was tolerated, but not welcomed. I was, and will always be, different from them. And because of the color of my skin, I will be the one who's blamed.

KENNEDY: Nothing further . . .

PROS. ATTORNEY: **(Pg 405-407)** (approaching the witness box) At the moment that baby died deep down, you didn't really give a damn, right, Ruth?

RUTH: Of course, I did!

PROS. ATTORNEY: (aggressively, voice rising as she physically moves into Ruth's space) Ah, but this was the baby of a white supremacist. The baby of a man who called into question your ability to do your job simply because of the color of your skin. You resented Turk Bauer, and you resented his baby, didn't you?

RUTH: (as the Pros. Attorney continues, overlapping) You're wrong . . . I never thought that . . .

PROS. ATTORNEY: Or maybe you were thinking: This baby doesn't deserve my help. His parents don't want me touching him because I'm black, and they're gonna their wish.

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RUTH: (growing more and more agitated) That's not true . . .

PROS. ATTORNEY: (Still on the attack) You were thinking: I hate his racist parents! Or maybe it was I hate this baby ***because*** I hate his racist parents.

RUTH: (holds her hands to her head) No! I was thinking that baby was better off dead than raised by ***him*** (she points to Turk Bauer –realizes what she has done and places a shaking hand over her mouth . . . silence)

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KENNEDY: **(Pg 407)** (to audience) I grab Ruth's wrist as soon as we are dismissed and drag her to the conference room. (angrily to Ruth) Congratulations. You did ***exactly*** what you weren't supposed to do, Ruth. Are you happy you got up on the stand to testify? All the jury is going to see now is an angry black woman. One who was so pissed off and vengeful that I wouldn't be surprised if the judge regrets dismissing the count of murder. You gave those jurors every reason to believe you were mad enough to let that baby die before your eyes.

RUTH: (sneering) Look at you. You're so proud of being a public defender and working with people of color. (breathing heavily) Prejudice goes both ways, you know. There are people who suffer from it, and there are people who profit from it. Who died and made you Robin Hood? Who said I ever needed saving. Here you are on your high horse, telling me **I** screwed up this case that **you** worked so hard on; patting yourself on the back for being an advocate for a poor, struggling black woman like me . . . but you're part of the reason I was down on the ground to begin with. (she exits)

KENNEDY: **(Pg 415)** (frustrated, angry – she calms herself and reflects) Maybe I'm wrong. I've spent months telling Ruth that a criminal lawsuit is no place to bring up race. If you do, you can't win. But if you don't, you are perpetuating a flawed system, instead of trying to change it. That's what Ruth has been trying to say, but I haven't listened. She's brave enough to risk losing her job, her livelihood, her ***freedom*** to tell the truth, and I'm the liar. I told her race isn't welcome in the courtroom, when deep down I know it's already there. It always has been. Just because I close my eyes doesn't mean it's gone away . . . Ruth

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accused me of wanting to save her. But she doesn't need saving. Who am I to give advice when I haven't lived her life?

****** The following day – Kennedy's Closing argument******

KENNEDY: (Pg 428-429) Ladies and gentlemen, I told you when we started this case that it was about Ruth Jefferson being presented with an impossible choice: to do her job as a nurse, or to defy her supervisor's orders. But this case is about a lot more. Out of all the people who interacted with Davis Bauer during his short life, only one is being charged with a crime: Ruth Jefferson. I spent an entire trial skirting a very important question: Why?

RUTH: (Pg 49) (as Kennedy gives her closing arguments, Ruth speaks her mind to the audience) Are we gonna talk about it, or are we gonna pretend nothing's wrong? **(Pg 43) NO AFRICAN AMERICAN PERSONNEL TO CARE FOR THIS PATIENT**

KENNEDY: (Pg 429) Ruth is black. That rubbed [the baby's father] the wrong way. He can't stand black people, or Asian people, or gay people, or anyone who isn't like him. He set into motion a chain of events that would lead Ruth to becoming a scapegoat for the tragic death of his son. I don't think it's right to ignore the truth any longer.

RUTH: (Pg 170) They put me in chains. Just like that, they shackle my hands in front of me, as if that doesn't send two hundred years of history running though my veins like an electric current. As if I can't feel my great-great-grandmother and her mother standing on an auction block. They put me in chains, and my son – who I've told, every day since he was born, ***You are more than the color of your skin*** – my son watches.

KENNEDY: (Pg 431) I bet you feel uncomfortable right now. You know, so do I. It's hard to talk about this stuff without offending people, or feeling offended.

RUTH: (Pg 238) You say you don't see color … but that's ***all*** you see. You're so hyperaware of it, and trying to look like you aren't prejudiced, you can't even understand that when you say ***race doesn't matter*** all I hear is you dismissing what ***I've*** felt, what ***I've*** lived, what it's like to be put down because of the color of ***my*** skin. (beat)

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KENNEDY: **(Pg 430-431)** [You see] There is a difference between active and passive racism. Active racism is telling a nurse supervisor that an African American nurse can't touch your baby. It's snickering at a black joke. But passive racism? It's noticing there's only one person of color in your office and not asking your boss why. It's reading your kid's fourth-grade curriculum and seeing that the only black history covered is slavery, and not questioning why. It's defending a woman in court whose indictment directly resulted from her race. . . and glossing over that fact, like it hardly matters.

RUTH: (to Kennedy, who continues unaware of Ruth) **(Pg 237)** You told me this lawsuit isn't about race. But that's what started it. And it doesn't matter if you convince the jury I'm the reincarnation of Florence Nightingale—you can't take away the fact that I am Black. The truth is, if I looked like you, this would not be happening to me.

KENNEDY: **(Pg 430)** I know you're thinking: ***I'm not racist.*** I doubt there are many of you who believe that black people are so inferior they should not even be able to touch a white baby. But even if we took every white supremacist on the planet and shipped them off to Mars, there would still be racism. That's because racism isn't just about hate. We all have biases, even if we don't think we do.

RUTH: (to audience) **(Pg 43)** I don't have a problem with white people. I live in a white community; I have white friends; I send my son to a predominantly white school. I treat them the way I want to be treated – based on their individual merits as human beings, not on their skin tone.

KENNEDY: **(Pg 431)** (sighs) If you've asked yourself what this trial is really about, you know it's more than just whether Ruth had anything to do with the death of one of her patients. In fact, it has very little to do with Ruth. It's about systems that have been in place for four hundred years. Systems meant to make sure that people like Turk Bauer can make a heinous request as a patient, and have it granted. Systems meant to make sure that people like Ruth are kept in their place . . .

RUTH: **(Pg 432)** (stunned) After months of telling me that race doesn't belong in a court of law, Kennedy McQuarrie took the elephant in the room and paraded it in front of the judge. She

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squeezed it into the jury box, so that those men and women couldn't help but feel the pinch. What Kennedy said – it's been the narrative of my life . . . but I could have screamed it from the rooftops, and it wouldn't have done any good. For the jurors to hear it, really hear it, it had to be said by one of their own.

SOURCE INFORMATION

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